

The M.P. State University Service Rules, 1983

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State of Madhya Pradesh - Act

The M.P. State University Service Rules, 1983

MADHYA PRADESH

India

The M.P. State University Service Rules, 1983

Rule THE-M-P-STATE-UNIVERSITY-SERVICE-RULES-1983 of 1983

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The M.P. State University Service Rules, 1983

Published vide Notification No. F. 32-4-80-C-3-38, M.P. Rajpatra (Asadharan), dated 25-3-1983 at pages 1074-83

In exercise of the powers conferred by sub-section (2) of Section 15-A of the Madhya Pradesh Vishwavidyalaya Adhiniyam, 1973 (No. 22 of 1973), the State Government hereby makes the following rules for regulating the recruitment and the conditions of service of persons appointed to the State University Service.

Part I ? Preliminary

1.

Short title, application and commencement.

(1)

These rules may be called the Madhya Pradesh State University Service Rules, 1983.

(2)

They shall apply to every member of the State University Service constituted under sub-section (1) of Section 15-A of the Act.

(3)

They shall come into force with effect from the date of their publication in the "Madhya Pradesh Gazette".

2.

Definitions.

- In those rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh Vishwavidyalaya Adhiniyam, 1973 (No. 22 of 1973);

(b)

"Commission" means the Madhya Pradesh Public Service Commission;

(c)

"Government" or "State Government" means the Government of Madhya Pradesh;

(d)

"Schedule" means a Schedule appended to these rules;

(e)

"Scheduled Castes and Scheduled Tribes" shall have the same meanings as are assigned to them by clauses (24) and (25) respectively of Article 366 of the Constitution; and are notified as such by the State Government from time to time;

(f)

"Section" means a section of the Act;

(g)

"Service" means the State University Service constituted under sub section (1) of Section 15-A;

(h)

"University" means a University to which the Act is applicable.

Part II

Constitution of the Service and Recruitment

3.

Constitution of the Service.

- The Service shall consist of the following persons namely :-

(i)

persons who, on the date specified in the notification under Section 15-A (i) were holding any post comprising the Service and are permanently absorbed in the Service in accordance with the provisions of the Act and these rules,

(ii)

persons recruited to the Service in accordance of these rules.

4.

Classification, scales of pay etc.

- The classification of the Service, the scales of pay attached thereto, and the number of posts included in the Service shall be as specified in Schedule I :

Provided that the Government may, from time to time, add to or reduce the number of posts included in the Service, either on a permanent or temporary basis.

5.

Method of recruitment.

(1)

Without prejudice to the provisions of Rule 7, recruitment to the Service after the commencement of these rules, shall be by the following methods, namely :-

(a)

by direct recruitment,

(b)

by promotion of persons, holding a lower post which may or may not comprise the Service, to a higher post comprising the Service, and

(c)

by deputation from the State Government or any organization other than the Universities as the [State Government] [Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.] may deem fit.

(2)

The number of persons recruited by various methods under sub-rule (1) shall be in accordance with the percentage shown in Schedule I.

(3)

Notwithstanding anything to the contrary contained in sub-rules (1) and (2), if in the opinion of the [State Government] [Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

, the exigencies of Service so require, he may, in consultation with the Commission, adopt such methods of recruitment to the service, other than those prescribed in sub-rule (1) as he may, by an order issued in this behalf, specify.

6.

Appointment to the Service.

- All appointments to the Service after the commencement of these rules shall be made by the [State Government] [Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

, and no such appointment shall be made except in accordance with Rule 5.

7.

Absorption.

- The absorption or termination of services of the persons, serving on any of the posts in the cadres comprising the Service immediately before its constitution shall be governed by the following provisions, namely :-

(a)

The [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

shall appoint a Committee consisting of Senior Kulpati as Chairman and the Chairman of the Public Service Commission or a member thereof nominated by him and the [Commissioner Higher Education or a member not below the rank of Additional Director nominated by him]

[Substituted by Notification No. F-52-29-94-C-3-XXXVIII, dated 3-9-1994.]

as its members to consider the cases of all persons serving on any of the posts comprising the service immediately prior to the constitution of the service and not liable to be permanently absorbed by virtue of not having been conferred in such post before 1st September, 1980 as laid down in sub-section (4) of Section 15-A.

(b)

The Committee shall screen the cases of all such persons and make recommendations to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

as to whether such persons should at all be absorbed and if so, whether permanently or provisionally.

(c)

The [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may pass such orders on the recommendation of the Committee under clauses (b) and (d) as he deems fit :

Provided that there it is proposed to terminate the services of a person under sub-section (4) of Section 15-A, he shall be given an opportunity of being heard, before such an order is passed.

(d)

A case of every person absorbed provisionally shall be reviewed annually by the Committee constituted under clause

(a), which shall, after such review, recommend to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

whether the person is fit for permanent absorption or otherwise, or his work and conduct need to be further observed before taking a decision in this regard.

(e)

One month's salary' payable under sub-section (4) of Section 15-A shall be paid by the University in which the person concerned was employed immediately before the commencement of these rules.

8.

Conditions of eligibility of direct recruits.

- In order to be eligible for direct recruitment to the Service a candidate must satisfy the following conditions, namely :-

(i)

Age. - (a) He must have attained the age specified in column (3) of Schedule II and not attained the age specified in Column (4) of the said Schedule on the first day of January next following the date of notification inviting applications for direct recruitment to the post.

(b)

The upper age limit shall be relaxable upto a maximum of 5 years if a candidate belongs to a Scheduled Caste or a Scheduled Tribe.

(c)

In regard to posts for which upper age limit is less than 38 years as prescribed in Schedule II, the age limit shall also be relaxable in respect of candidates who were or have been employees of the Madhya Pradesh Government or of a University in Madhya Pradesh to the extent and subject to the conditions specified below :

(i)

A candidate who is a permanent, temporary, contingency paid or work-charged employee should not be more than 38 years of age.

(ii)

A candidate who is a retrenched Government or University employee shall be allowed to deduct from his age the period of all temporary service previously rendered by him upto a maximum limit of 7 years even if it represents more than one spell provided that the resultant age does not exceed the upper age limit by more than three years.

Explanation. - The term "retrenched Government or University employee" denotes a person who was in temporary Government service of this State or of any of the constituent units, or in temporary service of a University of Madhya Pradesh for a continuous period of not less than six months and who was discharged because of reduction in establishment not more than three years prior to the date of his registration at the employment exchange or of application made otherwise for employment in State University Service.

(d)

A candidate who is an ex-serviceman shall be allowed to deduct from his age the period of all defense service previously rendered by him provided that the resultant age does not exceed the upper age limit by more than three years.

Explanation. - The term "ex-serviceman" denotes a person who belonged to any of the following categories and who was employed under the Government of India for a continuous period of not less than six months and who was retrenched or declared surplus as a result of recommendation of the Economy Unit or due to normal reduction in establishment not more than three years before the date of registration at any Employment Exchange or of application made otherwise for employment in State University Service.

(1)

ex-servicemen released under mustering out concessions,

(2)

ex-servicemen enrolled for the second time and discharged on (a) completion of short term engagement, (b) fulfilling the conditions of enrollment,

(3)

ex-personnel of Madras Civil Unit,

(4)

officers (Military and Civil discharged on completion of their contract (including short service Regular Commissioned Officers),

(5)

officers discharged after working for more than six months continuously against leave vacancies,

(6)

ex-servicemen discharged on the ground that they are unlikely to become efficient soldiers,

(7)

ex-servicemen invalidated out of service,

(8)

ex-servicemen who are medically boarded out on account of gun-shot wounds and the like.

N.B. - Candidates who are considered eligible for the selection under the age concessions specified in items (i) and (ii) of sub-clause (c) shall not be eligible for appointment if after submitting the application they resign from service either before or after taking the examination. They will however, continue to be eligible if they are retrenched from the service or post after submitting the applications. In no other case shall these age limits be relaxed.

Departmental candidates must obtain previous permission of the appointing authority to appear for the examination.

(ii)

Qualifications. - He must possess the qualifications prescribed for the service in Schedule II :

Provided that-

(a)

in exceptional cases the Commission may, with the approval of the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

, treat as qualified a candidate who, though not possessing any of the qualifications prescribed in this clause, has passed examination conducted by other institutions by a standard which, in the opinion of the Commission, justifies the consideration of the candidate for selection, and

(b)

a candidate who is otherwise qualified but has taken a degree from a University not specifically recognized by Government may also be considered for selection at the discretion of the Commission.

(iii)

Fees. - He must pay the fees prescribed by the Commission.

9.

Disqualification.

- Any attempt on the part of a candidate to obtain support for his candidature by any illegal or unfair means shall be held by the Commission to disqualify him for selection.

10.

Commission's decision about the eligibility of candidates Final.

- The decision of the Commission as to the eligibility or otherwise of a candidate for selection shall be final and no candidate to whom a certificate of admission has not been issued by the Commission shall be interviewed by them.

11.

Direct recruitment.

(1)

Selection for recruitment to the Service may be held at such intervals as the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may, in consultation with the Commission, determine from time to time.

(2)

The selection of suitable candidates for the Service shall be made by the Commission after interviewing them, if necessary, after prior screening of cases of eligible candidates by applying such criteria and/or through such tests or examinations as the Commission may deem fit.

(3)

[There shall be reserved posts for the persons belonging to the Scheduled Castes. Scheduled Tribes and Other Backward Classes at the Stage of direct recruitment in accordance with the provisions contained in the Madhya Pradesh Lok Seva (Anusuchit Jatiyon, Anusuchit Jan Jatiyon or Anya Pichheda Vargon Ke Liye Arakshan) Adhiniyam, 1994 (No. 21 of 1994)]

[Substituted by Notification No F-73-5-95-C-38, dated 7-10-1997.]

(3)

15 percent and 18 percent of the available vacancies for direct recruitment shall be reserved for candidates who are members of the Scheduled Tribes respectively.

(4)

In filling the vacancies so reserved, candidates who are members of the Scheduled Castes and the Scheduled Tribes shall be considered for appointment in the order in which their names appear in the list referred to in Rule 12 irrespective of their relative rank as compared with other candidates.

(5)

Candidates belonging to the Scheduled Castes or the Scheduled Tribes considered by the Commission to be suitable for appointment to the Service with due regard to the maintenance of efficiency of administration, may be appointed to the vacancies reserved for the candidates of the Scheduled Castes or the Scheduled Tribes, as the case may be under sub-rule (3).

(6)

If a sufficient number of candidates belonging to the Scheduled Castes and the Scheduled Tribes is not available for filling all the vacancies reserved for them, the remaining vacancies shall be re-advertised exclusively for these candidates, if even after re-advertisement, any vacancies remain unfilled, they shall be filled from among the general candidates and an equivalent number of additional vacancies shall be reserved for candidates belonging to the Scheduled Castes or the Scheduled Tribes, as the case may be during the subsequent selection :

Provided that the total number of vacancies reserved for candidates belonging to the Scheduled Castes and Scheduled Tribes (included the vacancies carried forward) shall not at any time exceed forty five percent of the total vacancies advertised.

(7)

[30 percent posts shall be reserved for women candidates, in accordance with the provision of the Madhya Pradesh Civil Services (Special Provision for Appointment of Women) Rules, 1997.]

[Inserted by Notification No. F-73-5-97-C-3-XXXVIII, dated 13-7-1998.]

12.

List of candidates recommended by the Commission.

(1)

The Commission shall forward to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

a list arranged in order of merit of the suitable candidates who have qualified by such standards as the Commission may determine and of the candidates belonging to the Scheduled Castes and Scheduled Tribes who, though not qualified by that standard, are declared by the Commission to be suitable for appointment to the Service with due regard to the maintenance of efficiency of administration. The list shall also be published for general information.

(2)

Subject to the provisions of these rules, candidates will be considered for appointment to the available vacancies in the order in which their name appear in the list.

(3)

The inclusion of a candidate's name in the list shall confer no right to appointment unless the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

is satisfied, after such enquiry as may be considered necessary that the candidate is suitable in all respects for appointment to the Service.

13.

Appointment by promotion.

(1)

There shall be constituted a Committee consisting of the members specified in Schedule III for making a preliminary selection for promotion of eligible candidates.

(2)

The Committee shall meet at intervals ordinarily not exceeding one year.

(3)

15 percent and 18 percent of the available vacancies for promotion in such posts in which the percentage of promotion is 33/3 percent or more as specified in Schedule II, shall be reserved for officers belonging to the Scheduled Castes and Scheduled Tribes respectively who are eligible for promotion in accordance with the provisions of Rule 14.

(4)

Subject to any instructions that may be issued by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

in this regard, the procedure for making promotions in the reserved vacancies shall be in accordance with the instructions issued by Government in the General Administration Department, from time to time.

14.

Conditions of eligibility for promotion.

(1)

Subject to the provisions of sub-rule (2), the Committee shall consider the cases of all persons who, on the 1st day of January' of that year, had completed such number of years of service (whether officiating or substantive) in the posts from which promotion is to be made as specified in column (3) of Schedule III and are within the zone of consideration in accordance with the provisions of sub-rule (2).

(2)

The field of selection shall ordinarily be limited to seven times the number of officers to be included in the select list, in respect of posts filled on the basis of merit-cum-seniority and five times the number of officers to be included in the select list in respect of posts filled on the basis of seniority-cum-merit :

Provided that if the required number of suitable officers is not available in the field so determined, the field may be enlarged to the extent considered necessary by the Committee by mentioning the reasons in writing.

15.

Preparation of list of suitable officers.

(1)

The Committee shall prepare a list of such persons as satisfy the conditions prescribed in Rule 14 and as are held by the Committee to be suitable for promotion/ transfer to the Service. The list shall be sufficient to cover the anticipated vacancies on account of retirement and promotion during the course of one year from the date of preparation of the select list. A reserve list consisting of twenty five percent of the number of persons included in the select list. A reserve list consisting of twenty five percent of the number of persons included in the said list shall also be prepared to meet the unforeseen vacancies occurring during the course of the aforesaid period.

(2)

[For preparing the select list of persons for promotion from the post of Class III to Class II, Class II to Class II and from Class II to Class I, the criterion shall be seniority subject to fitness for promotion from Class I to Class I posts, the criterion shall be merit-cum-seniority.]

[Substituted by Notification No. F-73-5-97-C-3-XXXVIII, dated 13-7-1998.]

(3)

The names of the officers included in the list shall be arranged in order of seniority in the Service or posts, as specified in column (3) of Schedule III at the time of preparation of such select list :

Provided that any junior officer, who in the opinion of the Committee, is of exceptional merit and suitability, may be assigned in the list a higher place than that of officers senior to him, after recording reasons.

Explanation. - A person whose name is included in a select list but who is not promoted during the validity of the list, shall have no claim to seniority over those considered in a subsequent selection merely by the fact of his earlier inclusion in a select list.

(4)

A list so prepared shall be reviewed and revised every year.

(5)

If in the process of selection, review or revision, it is proposed to supersede any member of lower cader from which promotion is being made, the Committee shall record its reasons for the proposed supersession.

16.

Submission of the list of suitable officers to [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

.

- The list prepared in accordance with Rule 15 shall then be forwarded to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

alongwith-

(i)

the records of all persons included in the list,

(ii)

the records of all persons who are proposed to be superseded by the recommendations made in the list; and

(iii)

the reasons as recorded by the Committee for the proposed supersession of any person.

17.

Select list.

- The [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

shall approve the list prepared by the Committee with such modifications, if any, as he may deem necessary, made for reasons to be recorded by him.

(2)

The list as finally approved by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

shall form the select list for promotion from the post(s) as in Column (3) of Schedule III to the corresponding post(s) as in column (2) of the said Schedule.

(3)

The select list shall ordinarily be in force until it is reviewed or revised in accordance with sub-rule (4) of Rule 15, but its validity shall not be extended beyond a total period of 18 months from the date of its preparation : Provided that, in the event of misconduct or a grave lapse in the conduct of performance of duties on the part of any person included in the select list a special review of the select list may be made at the instance of the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

who may if he thinks fit, remove the name of such person from the select list.

18.

Appointment to the Service from the select list.

- Appointments of the officers included in the select list to posts borne on the cadre of the Service shall follow the order in which the names of such officers appear in the Select List :

Provided that where administrative exigencies so require, a person whose name is not included in the Select List or who is not next in order in the Select List may be appointed to the service if the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

is satisfied that the vacancy is not likely to last for more than six months.

19.

Probation.

(1)

Every person directly recruited to the Service shall be appointed on probation for a period of two years :

Provided that continuous service rendered in officiating or temporary capacity in any post included in the Service may be allowed in whole or in part, to be counted by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

towards the period of probation :

Provided further that the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may, for sufficient reasons to be recorded in writing, extend the period of probation in individual cases for a further period not exceeding two years. Any such order of extension shall specify the exact period for which the probationary period is extended.

(2)

If during or at the end of period of probation or extended period of probation as the case may be it is found that the person concerned has not been found suitable for the post on which he has been working on probation, his services may be dispensed with without entitling him to any compensation or damages, and no such action shall be construed to be way of punishment.

20.

Confirmation.

- A probationer shall be confirmed in his post at the end of the period of probation or the extended period of probation, as the case may be, if his work and conduct are otherwise found to be satisfactory by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

21.

Seniority.

(1)

Seniority of persons appointed to any posts in the Service under Rule 12 or Rule 18 shall be determined by the date of the order of appointment in substantive capacity to that category provided that if two or more candidates are appointed on the same date the direct recruits shall be placed before the promoted officers :

Provided that within each category the inter-se seniority of direct recruits and promotees shall be determined as per order in which their respective names appear in the list prepared under Rule 12 or Rule 18 as the case may be.

(2)

Seniority of officers finally absorbed in any cadre comprising the Service under sub-Section (4) of Section 15-A of the Act or Rule 7 shall be determined in that cadre on the basis of total length of continuous service rendered since confirmation in that post.

(3)

In all disputes regarding the seniority of an officer, the decision of the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

shall be final.

Note. - A candidate appointed directly may lose seniority if he fails to join the post to which he is appointed within such period as may be specified in the order of appointment or within such extended period as may be allowed by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

Part III ? Transfer, Pay and Leave

22.

Transfer.

- The [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may transfer any member of service from one University to another.

23.

Paying authority.

- Subject to the provisions of these rules, the pay and allowances of persons appointed to the Service shall be paid by the University in which such person is for the time being posted.

24.

Pay during probation.

(1)

Person on probation, if he is not already in the permanent service of a University, shall draw, during the period of probation the minimum pay of the post. On confirmation after the probation period, he will be entitled to claim retrospectively the increments which but for his probation he would have received in the ordinary course :

Provided that, if the period of probation is extended on account of failure to give satisfaction, the extended period shall not count for increment unless the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

directs otherwise.

(2)

The pay during the period of probation of a person who is already holding a substantive post in the service of a University before recruitment to the State University Service, shall be regulated in accordance with the relevant rule relating to the pay of the employee of the University.

25.

Criteria for crossing efficiency bars.

(1)

No member of the Service shall be allowed to cross the first efficiency bar unless he is found to have worked satisfactorily and to the best of his ability and his integrity is certified by the [State Government] of the University in

which he has worked.

(2)

No member of the Service shall be allowed to cross the first, second and subsequent efficiency bars, if any, unless he has given full satisfaction by his work, conduct, integrity and ability.

(3)

Orders allowing a member of the Service to cross the efficiency bar and allowing the increment next above the bar shall be issued by the Kulpati of the University in which he is for the time being posted.

(4)

On each occasion on which a member of the Service is allowed to cross the efficiency bar, which had been previously withheld in the time scale of his pay with effect from the date of crossing the bar shall be fixed.

26.

Leave, Leave allowances, officiating pay, fees and honoraria.

(1)

Except as otherwise provided by these rules, all matters relating to leave and leave salary shall be regulated as far as may be in the manner laid down in the leave rules applicable to the Government servants of like status and all amendments thereto together with all explanations and clarifications issued from time to time shall mutatis mutandis, apply :

Provided that if there be no corresponding post indicative of like status the question shall be referred to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

whose orders thereon shall be final.

(2)

Grant of pay, including officiating and additional pay, special pay, honorarium, compensatory allowances, subsistence allowance to a member of the Service and the acceptance of fees, if any, shall be regulated as far as may be, on the same terms and conditions as are applicable to the Government servants of the same status under the Fundamental Rules, to the State of Madhya Pradesh and in cases not expressly covered by said provisions, matter shall be referred to [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

whose orders thereon shall be final.

27.

Incidence of leave charges etc.

- The incidence of leave charges, transit pay anti allowances including traveling allowances of members of the Service transferred from one University to another shall be regulated in accordance with the following principles, namely :-

(a)

When a member of the Service is transferred from one University to another, his transit pay and allowances shall be borne by the University to which he is transferred.

(b)

Before the member of the Service is allowed to draw his pay and allowances in the University to which he has been transferred, he shall produce a certificate from the Finance Officer of the University in which he had been serving before such transfer specifying the period up to which and the rate, at which he has drawn his pay and allowances in such University, and the amounts outstanding against him.

(c)

Leave salary shall be borne by the University from where such member proceeds on leave.

Part IV

Disciplinary Proceedings, Retirement and Miscellaneous Provisions

28.

Disciplinary proceedings.

(1)

Subject to the provisions of sub-rules (2), (3) and-(4), the enactments and rules or in their absence, instruction regarding disciplinary proceedings, appeals, reviews, other remedies and representations against punishment as are applicable to the officers of the State Government for the time being, shall mutatis mutandis, apply to the officers of the Service.

(2)

The power to impose the punishment of dismissal or removal from Service or reduction in rank of the members of the Service shall vest with the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

, The Kulpati of the University in which concerned member of the Service for the time being is serving shall be the competent authority to impose other penalties :

Provided that in the case of the Registrar, only [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

shall be competent to impose any penalty whatever, except 'Censure';

Provided further that it shall be necessary to consult the Commission before passing an order for the dismissal or removal from Service or reduction in rank in respect of any such member.

(3)

The authority competent to suspend or institute a departmental enquiry against a Registrar shall be the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

, and for all other officers of the Service the Kulpati of the University in which such other officer is for the time being serving.

(4)

Where the disciplinary proceedings against a member have been started by the Kulpati in accordance with the provision of sub-rule (3) and after the completion of enquiry he comes to a provisional conclusion that a penalty of dismissal or removal from Service or reduction in rank ought to be imposed, he shall refer the case alongwith his findings and recommendations to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

for orders.

[Conduct Rules.

[Inserted by Notification No. F-73-5-97-C-3-38, dated 15-7-1997.]

- The provisions of the Madhya Pradesh Civil Services Conduct Rules, 1965 shall apply to the service.]

29.

Age of retirement.

(1)

Subject to the provisions of sub-rule (2) the age of retirement from Service of the members of the State University Service shall be 60 years :

Provided that the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may, in public interest, grant to a member of the Service who has reached the age of superannuation, an extension in Service for a further period not exceeding two years subject to the member having a meritorious record of service.

(2)

The [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may require a member of the Service to retire on his attaining the age of 57 years on three month's notice or pay in lieu of the whole or part thereof as the case may be, if such notice falls short of three months, if the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

considers it necessary to do so in public interest.

(3)

A member of the Service may, on attaining the age of 57 years, voluntarily retire after giving three month's notice to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

. In case of a member against whom disciplinary proceedings are pending this notice shall be effective only when it is accepted by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

. A notice once given under this sub-rule shall not be withdrawn without the permission of the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

.

30.

Interpretation.

- If any dispute as to the liability of a University for payment of salary, traveling allowance, provident fund or any other dues to a member of the Service or if any dispute or difficulty arises regarding interpretation of any of the provisions of these rules, the same shall be referred to the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

whose decision thereon shall be final.

31.

Power to grant exemption.

- Notwithstanding anything contained in these rules, where the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

is satisfied that the operation of any of the provisions of these rules causes under hardship in any particular case, he may by order dispense with or relax the requirements of that provision to such extent and subject to such conditions as he may consider necessary for dealing with the case in a just and equitable manner.

I

[See Rules 4 and 5]

Sl. No.

Name of post included in the service

Total No. of duty posts

Scale of pay

Percentage of the duty posts to be filled.

By direct recruitment vide Rule 5(i)(a)

By promotion vide Rule 5(i)(h)

By deputation vide Rule 5(i)(e)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

Registrar

8

As sanctioned from time to time.

[50%]

[Substituted by Notification No. F-52-112-97-C-3-XXXVIII, dated 16-10-1998.]

[50%]

[Substituted by Notification No. F-52-112-97-C-3-XXXVIII, dated 16-10-1998.]

The[State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

may, if he deems fit, appoint a

suitable person on deputation against a post.

2.

Deputy Registrar

As sanctioned from time to time

-

100%

do

3.
Assistant Registrar
[45%]
[Substituted by Notification No. F-73-3-92-C-3-XXXVIII, dated 11-6-1993.]
[55%]
[Substituted by Notification No. F-73-3-92-C-3-XXXVIII, dated 11-6-1993.]

do
3A.
[X X X]
[Omitted by Notification No. F-52-31-95-C-3-XXXVIII, dated 20-11-1995.]

4.
Controller University Press
50%
50%

do
5.
Deputy Controller University Press
100%

-
do

6.
Finance Officer
100%

7.
University Engineer
100%

II
[See Rule 8]

Sl.No.
Name of post included in the service
Minimum age limit
Maximum age limit
Qualifications

(1)
(2)
(3)
(4)
(5)

1.
Registrar
40 years
55 years
Essential:
(i) Atleast IIInd class Master's Degree from a recognized University or equivalent
(ii) Minimum 10 years experience in the field of Higher Education on a Teaching/ administrative post.
Desirable :
Five years teaching experience if the candidate is from administrative field. Five years administrative experience if the candidate is from teaching field.

2.

Asstt. Registrar

25 years

35 years

Essential :

At least IInd Class Master's Degree from a recognised University or equivalent.

Desirable :

Experience in a Teaching/ Administrative post.

2-A.

[X X X]

[Omitted by Notification No. F-52-31-95-C-3-XXXVIII, dated 20-11-1995.]

3.

Controller University Press.

35 years

55 years

(i) At least IInd Class Bachelor's Degree from a recognised University or equivalent.

(ii) Diploma in Printing and Allied Trades from a recognised technical institution/ School/ College of Printing in India.

(iii) At least 7 years experience in a responsible supervisory capacity in a scale of pay not lower than Rs. 350-600 in a Printing Press having modern mechanical composing, automatic printing machine etc.

(iv) Thorough knowledge of hand and mechanical composing, printing, machine mending, binding and all branches of printing trade, knowledge of copy fitting, manuscript editing, types, preparation of layout and display etc.

(v) Good knowledge of Hindi and English

Note.- (1) Candidates with outstanding record of press management and/ or as practising printers with conspicuous success in their line may be considered for exemption from the requirement of Diploma in Printing Technology.

(ii) Candidates with outstanding technical qualifications and experience may be considered for relaxation in the requirement of academic qualification also.

4.

Deputy Controller. University Press

30 years

40 years

Essential:

(i) Diploma in Printing and Allied Trades from a recognised technical institution/ School/ College of Printing in India.

(ii) A minimum of 5 years practical experience in a printing press having modern mechanical composing, automatic printing machine etc.

(iii) Thorough knowledge of hand and mechanical composing, printing machine mending, binding and all branches of printing trade, knowledge of copy fitting, manuscript editing, types, preparation of layout and display etc.

Desirable :

A Bachelor's Degree from any recognised University.

III

[See Rules 13, 14 and 15]

S.No.

Name of post included in the Service to which
promotion is to be made

Name of the post from which promotion shall be
made

Member of promotion Committee

Qualifications for promotion

1

2

3

4

5

1.

Registrar

1. Dy Registrar

1. A Senior Kulpati nominated by the [State Government]

[Substituted by Notification No. 808-99-C-3-XXXVIII, dated 23-3-1999.]

-

Chairman

7 years experience in the post(s) mentioned in Column (3).

2. Finance Officer not appointed on deputation but absorbed as
Finance Officer under Rule 7.

2.

Deputy Registrar

1. Assistant Registrar

2. Chairman, Public Service Commission or a member nominated
by him - Member.

5 years experience in the post(s) mentioned in Column (3)

2. [Secretary to Kulpati working in the pay scale of an
Assistant Registrar having the qualifications prescribed for the
post of Assistant Registrar]

[Substituted by Notification No. F-32-4-80-G-7-20, dated 10-3-1993.]

,

3. [Reception Officer of Barkatullah Vishwavidyalaya, Bhopal,
working in the Pay scale of Assistant Registrar]

[Substituted by Notification No. F-52-31-95-C-3-XXXVIII, dated 20-11-1995.]

3.

Assistant Registrar

Senior superintendent

Commissioner Higher Education or a member not below the rank
of Additional Director nominated by him - Member.

5 years experience in the post(s) mentioned in Column (3)

2. PAs to Kulpati/ Registrars in the pay scale of senior
Superintendent.

4.

Controller, University Press

Deputy Controller University Press

7 years experience in the post(s) mentioned in Column (3).

Note. - (1) While preparing the seniority list of persons holding posts mentioned in Column (3) in all Universities, names shall be arranged in accordance with the principles laid down in Rule 21.

(2)

Notwithstanding anything contained in column (3) a person holding a post which may not comprise the service, may also be considered as per Rule 5 (1)(b).

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